

MCA

Acknowledgement of Stamp Duty payment for

Articles of Association

Name of office of RoC :	Registrar of companies , National Capital Territory of Delhi and Haryana
State/ Union Territory :	Delhi
Serial Number (SRN) :	D01022201
Payment Date :	20/08/2010
Value in Rupees :	1,500.00
Value in Words :	Rupees one thousand five hundred only
Date of Generation :	26/08/2010
Corporate Identity Number (CIN) :	U74999DL2010PTC207582
Company Name :	BFG MARKET CONSULT PRIVATE LIMITED
Company Address :	SU 18, PITAM PURA, DELHI - 110034, Delhi, INDIA

(THE COMPANIES ACT, 1956)

(COMPANY LIMITED BY SHARES)

ARTICLES OF ASSOCIATION
OF
BFG MARKET CONSULT PRIVATE LIMITED

I. PRELIMINARY

1. Subject as hereinafter provided, the Regulations contained in Table 'A' in the Schedule 'I' to the Companies Act, 1956 shall apply to the Company.

II. INTERPRETATION

2. (1) In these Regulations :-
 - (a) "The Act" means the Companies Act, 1956 as amended, from time to time.
 - (b) "The Directors" means the Directors of the Company and include persons occupying the position of Directors by whatever name called.
 - (c) "This Seal" means the common seal of the Company.
- (2) Unless the context otherwise requires, words or expressions contained in these regulations shall bear the same meaning as in the Act or any Statutory modifications thereof in force.

III. PRIVATE COMPANY

3. The Company is a Private Company within the meaning of Section 2(35) and 3(1)(iii) of the Companies Act, 1956 and accordingly :-
 - (a) No invitation shall be issued to the public to subscribe for any shares in or debentures of the Company.
 - (b) The number of members of the Company (exclusive of persons who are in the employment of the Company and persons who, having been formerly in the employment of the Company, were members of the Company while in that employment and have continued to be members after the employment ceased) is limited to fifty; provided that for the purposes of this definition where two or more persons jointly hold one or more shares in the Company, they shall be treated as a single member ; and

- (c) The right to transfer the shares of the Company is restricted in the manner and to the extent hereinafter appearing.
- (d) Prohibits any invitation or acceptance of deposits from persons other than its members, directors or their relatives.

IV. CAPITAL

- 4. The Authorised Share capital of the Company shall be such amount and be divided into such shares as may, from time to time, be provided in clause V of Memorandum of Association payable in the manner as may be determined by the Directors, from time to time, with power to increase, reduce, sub-divide or to repay the same or to divide the same into several classes and to attach thereto any right and to consolidate or subdivide or re-organise the shares subject to the provisions of the Act, to vary such rights as may be determined in accordance with the regulations of the Company. The minimum paid up capital of the Company is Rs. 1,00,000/- (Rupees One Lac).
- 5. The share shall be under the control of the Directors who may allot or otherwise dispose of the same to such persons on such terms as the Directors think fit and to give any persons any shares whether at par or at premium and for such consideration as the Directors think fit.
- 6. Subject to these presents and the provisions of the Act, the shares of the Company whenever issued shall be under the control and at the disposal of Directors who may allot, issue or otherwise dispose of the same or any of them to such persons or on such terms and conditions and at such times and at par or premium or discount as they may, from time to time, think fit and proper, may also allot and issue shares in capital of the Company in payment or part payment for any property sold or transferred to or for services rendered to the Company in or about the conduct of its business and the shares which may be so allotted may be issued as fully paid up shares and if so issued deemed to be fully paid up shares.

V. TRANSFER AND TRANSMISSION OF SHARES

- 7. Subject to the provision of Section 108 of the Companies Act 1956 any member desiring to sell any of his shares must notify to the Board of Directors of the number of shares, the fair value and the name of the proposed transferee and the Board must offer to the other shareholders, the shares offered at the fair value and if the offer is accepted, the shares shall be transferred to the acceptors and if the shares of any of them are not so accepted within one month from the date of notice to the Board, the members proposing transfer shall, be at liberty; subject to Articles 8 and 9 hereof, to sell and transfer the shares to any person at the same or at a higher price.

In case of any dispute, regarding the fair value of the share it shall be fixed and decided and by the Company's Auditors whose decision shall be final.

- 8. No transfer of shares shall be made or registered without the previous sanction of the Directors, except when the transfer is made by any member of the Company to another member or to a member's spouse or child or children or his/her heirs and Directors may decline to give such sanction without assigning any reason, subject to Section 111 of the Act.

9. The Directors may refuse to register any transfer of a share (1) where the Company has a lien on the share, or (2) where the share is not fully paid up share, subject to Section 111 of the Act.

VI. GENERAL MEETINGS

10. All General Meetings, other than Annual General Meeting shall be called Extra-ordinary General Meetings.
11. (1) The Board of Directors may, whenever it thinks fit, call an Extra-ordinary General Meeting.
- (2) If at any time there are not within India Directors capable of acting who are sufficient in number to form a quorum, any Director or any two members of the Company may call an Extra-ordinary General Meeting in the same manner, as nearly as possible, as that in which a meeting may be called by the Board of Directors.
- (3) Subject to Sections 190, 171 and 219 of the Act, all General Meetings may be called by giving to members clear **three days notice** in writing except where such condition is waived off unanimously by all members in writing in the meeting.

VII. PROCEEDINGS AT GENERAL MEETINGS

12. (1) No business shall be transacted at any General Meeting unless a quorum of members is present at the time when the meeting proceeds to business.
- (2) Subject to regulation 49 of Table 'A' atleast two members present in person shall be a quorum.
13. The Chairman, if any, of the Board of Directors shall preside as Chairman of every General Meeting of the Company.
14. If there is no such Chairman, or if he is not present within fifteen minutes after the time appointed for holding the meeting or is unwilling to sit as Chairman of the meeting, the Directors present shall elect one of their members to be the Chairman of the meeting.
15. If at any meeting, no Director is willing to act as Chairman or if no Director is present within 15 minutes after the time appointed for holding the meeting, the members present shall choose one of their members to be Chairman of the meeting.
16. (1) The Chairman may with the consent of any meeting at which a quorum is present and shall, if so directed by the meeting, adjourn the meeting, from time to time and from place to place.
- (2) No business shall be transacted at any adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place.
- (3) When a meeting is adjourned for thirty days or more, notice of the adjourned meeting shall be given as in the case of an original meeting.
- (4) Save as aforesaid, it shall not be necessary to give any notice of an adjournment or of the business to be transacted at an adjourned meeting.

17. In the case of equality of votes, whether on a show of hands or on a poll, the Chairman of the meeting at which the show of hands takes place or at which the poll is demanded, shall not be entitled to a second or casting vote.
18. Any business other than that upon which a poll has been demanded may be proceeded with, pending the taking of the poll.

VIII. DIRECTORS

19. The Business of the Company shall be managed by the Directors who may pay all expenses incurred in getting the Company registered and may exercise all such powers of the Company as are not restricted by the Act or any statutory modification thereof for the time being in force or by these Articles required to be exercised by the Company in general meeting subject nevertheless, to any regulations of these Articles, to the provisions of the Act and to such regulations being not inconsistent with the aforesaid regulations or provisions as may be prescribed by the Company in general meeting. Nothing shall invalidate any prior act of the Directors which would have been valid if that regulation had not been made.
- 19A. The No. of Directors shall not be less than 2(Two) and not more than 12(Twelve).
20. **The First Directors of the Company shall be :**
 1. **DEEPAK GOEL**
 2. **RAMESH CHAND GOEL**
 3. **KRISHNA GOEL**
21. No person other than a retiring Director, shall be elected as a Director (except as a first Director or Director appointed by the Director) unless fourteen days notice shall have been given at the Registered office of the Company of the intention to propose himself together with a notice in writing, signed by himself signifying his willingness to be elected.
22. The Directors shall not be required to hold any qualification shares in the Company.
23. Each Director shall receive out of the funds of the company by way of sitting fee for his services a sum in accordance with the provision of the Companies Act 1956 and Rules made thereunder for every meeting of the Board or any committees of Directors attended by him.
24. The Director shall also be paid travelling and other expenses of attending and returning from meetings of the Board (including hotel expenses) and any other expenses properly incurred by them in connection with the business of the Company. The Directors may also be remunerated for any extra services done by them outside their ordinary duties as Directors, subject to the provisions of Section 314 of the Act.
25. If any Director, being willing shall be called upon to perform extra services or special attention for the purpose of the Company, the Company may, subject to Section 314 of the Act, remunerate such Director which either in addition to or in substitution for remuneration to which he may otherwise be entitled.

26. Subject to Sections 297 and 299 of the Act, no Director shall be disqualified by his office from contracting with the Company, nor shall any such contract entered into by or on behalf of the Company, in which any Director shall be in any way interested, be avoided nor shall any Director contracting or being so interested be liable to account to the Company for any profit realised by any such contract by reason only of such Director holding that office or of the fiduciary relations thereby established but it is declared that the nature of his interest must be disclosed by him at the meeting of the Directors at which the contract is determined if his interest then exists or in any other case at the first meeting of the Directors after he acquires such interest.
27. The Directors shall have the power, at any time and from time to time, to appoint any person as Additional Director in addition to the existing Directors but so that the total number of Directors shall not be less than two and not more than twelve at any time. Any Director, so appointed, shall hold office only till the next following annual general meeting but shall be eligible thereof for election as Director.
28. Subject to Section 197A of the Act, the Directors may, from time to time,, appoint one or more of them to the office of Managing Director on such terms and conditions and at such remuneration as they may think fit.

IX. PROCEEDINGS OF DIRECTORS

29. The Directors may meet together for the despatch of business, adjourn and otherwise regulate their meetings as they think fit and determine the quorum necessary for the transaction of business and the place and manner in which the meeting shall be called. Two Directors or one third of its total strength which ever is higher, present in accordance with Section 287 of the Act, shall form a quorum. Subject to the provisions of the Act, questions arising at any meeting shall be decided by majority of votes, in case of an equality of votes, the Chairman shall have a second or casting vote.
30. A Director may and on the request of a Director, the Secretary, if any, shall at any time summon a meeting of Directors. A Director who is not in India shall not be entitled to a notice of a meeting of the Directors.
31. The Director may from time to time elect a Chairman who shall preside at the meetings of the Directors and determine the period for which he is to hold office, but if no such Chairman is elected or if at any time, the Chairman is not present, the directors present shall choose one of their members to be the Chairman of such meeting.
32. Except a resolution which the Companies Act, 1956 requires it specifically to be passed in a board meeting, a resolution in writing signed by the majority of the Directors shall be as effective for all purposes as a resolution passed at a meeting of the Directors duly convened, held and constituted, subject to section 289 of the Act.

X. POWERS OF THE DIRECTORS

33. Subject to Section 292 of the Act, the Directors shall have the power to delegate any of their powers to such managers, agents or other persons as they may deem fit and may at their own discretion revoke such powers.
34. The Directors shall have powers for the engagement and dismissal of managers, engineers, clerks and assistants and shall have power of general direction, managements and superintendence of the business of the Company with full power to do all such acts, matters and things deemed necessary, power or expedient for carrying on the business and concern of the Company, and to make and sign all such contracts and to draw and accept on behalf

of the Company all such bills of exchange, hundies, cheques, drafts and other Government papers and instruments as shall be necessary proper or expedient for the authority and direction of the Company except only such of them as by the Act or by these presents which are expressly directed to be exercised by share-holders in the general meeting.

XI. INSPECTION OF ACCOUNTS

35. (1) The Board of Directors shall cause proper books of accounts to be maintained under Section 209 of the Act.
- (2) The Board of Directors shall, from time to time, determine whether and to what extent and at what times and places and under what conditions or regulations all books of the Company, or any of them, shall be open to the inspection of members not being directors.
- (3) No member (not being a director) shall have any right of inspecting any account book or document of the Company except as conferred by law or authorised by the Board or by the Company in general meetings.

XII. SECRECY

36. Every manager, auditor, trustee, member of a committee, officer, servant, agent, accountant or any other person employed in the business of the Company shall, if so required by the Board of Directors, before entering upon his duties, sign declaration pledging himself to observe strict secrecy respecting all transactions of the company with its customers and the state of accounts with individuals and in matters relating thereto and shall by such declaration pledge himself not to reveal any of the matters which may come to his knowledge in the discharge of his duties except when required to do so by the Directors or by any general meeting or by the laws of country and except so far as may be necessary in order to comply with any of the provisions in these presents of the Act.

XIII. BORROWING POWERS

37. Subject to section 58A and 292 of the Act, and the Regulations made thereunder and Directions issued by the R.B.I. the Directors shall have the power, from time to time and their discretion, to borrow, raise or to secure the payment of any sum of money for the purpose of the Company in such manner and upon such terms and conditions in all respects as they think fit and in particular by the issue of debentures or bonds of the Company or by mortgage charged upon all or any of the properties of the Company both present and future including its uncalled capital for the time being.

XIV. OPERATION OF BANK ACCOUNTS

38. The Directors shall have the power to open bank accounts, to sign cheques on behalf of the Company and to operate all banking account of the Company and to receive payments, make endorsements, draw and accept negotiable instruments, hundies, bills or may authorise any other persons to exercise such powers.

XV. BALANCE SHEET AND PROFIT AND LOSS ACCOUNT

39. The directors shall lay before each Annual General Meeting, Profit and Loss Account and Balance Sheet for the financial year of the company and Balance Sheet made upto the end of the financial year only and audited by a qualified auditor under the provisions of the Act.

XVI. AUDIT

40. The first auditors of the Company shall be appointed by the Board of Directors within one month after its incorporation who shall hold the office till the conclusion of first annual general meeting.
41. At each Annual General Meeting of the company, the company shall appoint auditors to hold office from the conclusion of the Annual General Meeting to the next Annual General Meeting.
42. The Directors may fill up any casual vacancy caused by death in the office of the Auditors.
43. The remuneration of the auditors is to be fixed by the company in the Annual General Meeting except that the remuneration of the first or any auditors appointed by the Directors may be fixed by the Directors.

XVII. THE SEAL

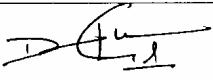
44. (1) The Board of Directors shall provide for the safe custody of the seal of the Company.
- (2) The seal shall not be affixed to any instrument except by the authority of a resolution of the Board of Directors or of a committee of the Board authorised by it on their behalf and except in the presence of one director who shall sign every instrument to which the seal of the Company is so affixed. The shares certificates will, however be signed in accordance with Rule 6 of the Companies (Issue of Share Certificates) Rules, 1960.

XVIII. WINDING UP

45. (1) On the winding up of the Company, the liquidator may, subject to the provisions of the Act, divide amongst the members in specie or otherwise the whole or any part of the assets of the Company, whether they shall consist of property of the same kinds or not.
- (2) For the purpose aforesaid, the liquidator may set such value as he deems fair upon any property to be divided as aforesaid and may determine how such division shall be carried out as between the members or different classes of members.
- (3) The liquidator may, with the like sanction, vest the whole or any part of such assets in trustees upon such trusts for the benefit of the contributories as the liquidator shall think fit but so that no member shall be compelled to accept any shares or other securities whereon there is any liability.

XIX. INDEMNITY

46. Subject to Section 201 of the Companies Act, 1956, the Chairman, Directors Auditors, Managing Directors, and other officers for the time being of the Company and any trustees for the time being acting in relation to any of the affairs of the Company and their heirs, executors, shall be indemnified out of the assets and funds of the Company from or against all benefit suits, proceedings, costs, charges, losses damages and expenses which they or any of them shall or may incur or sustain by reason of any act done or committed in or about the execution of their duties in their respective offices except those done through their wilful neglect or default or decert. Any such officer or trustee shall not be answerable for acts, omission, neglects or defaults of any other officer or trustee.

Names, addresses, description of Subscribers	Signature	Signature of the Witness
1 DEEPAK GOEL S/O R.C. GOEL SU-18, PITAMPURA NEW DELHI-110034 OCCUPATION: BUSINESS		I witness the signatures of all the subscribers: Sumit Bajoraj (SUMIT BAJORAJ) S/O SH. A. R. BAJAJ Chartered Accountant 6/7, D. B. Gupta Road, Pahar Ganj, New Delhi - 110055
2 KRISHNA GOEL W/O R.C. GOEL SU-18 PITAMPURA NEW DELHI-110034 OCCUPATION- HOUSE WIFE		
3. RAMESH CHAND GOEL S/O DEEPAK CHAND SU-18 PITAMPURA NEW DELHI-110034 OCCUPATION CONSULTANT		

PLACE: DELHI

DATE: 12-08-2010